

COUR PERMANENTE DE JUSTICE INTERNATIONALE

SÉRIE A/B

ARRÊTS, ORDONNANCES ET AVIS CONSULTATIFS

FASCICULE N° 49

**INTERPRÉTATION DU STATUT
DU TERRITOIRE DE MEMEL**

ARRÊT DU 11 AOÛT 1932

XXV^{me} SESSION

1932

XXVth SESSION

JUDGMENT OF AUGUST 11th, 1932

PERMANENT COURT OF INTERNATIONAL JUSTICE

SERIES A./B.

JUDGMENTS, ORDERS AND ADVISORY OPINIONS

FASCICULE No. 49

**INTERPRETATION OF THE STATUTE
OF THE MEMEL TERRITORY**

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LEYDEN
A. W. SIJTHOFF'S
PUBLISHING COMPANY

PERMANENT COURT OF INTERNATIONAL JUSTICE

TWENTY-FIFTH SESSION.

1932.
August 11th.
General list:
No 50.

August 11th, 1932.

INTERPRETATION OF THE STATUTE OF THE MEMEL TERRITORY

Convention of May 8th, 1924, concerning Memel; Statute of the Memel Territory annexed to the aforesaid Convention.— Interpretation, in particular, of Articles 1, 2 and 17 of the Convention, and of Articles 2, 6, 7, 10, 12, 16 and 17 of the Statute.—Powers of the Governor of the Territory in respect of: (a) the dismissal of the President and members of the Directorate of the Memel Territory; (b) the constitution of a Directorate; (c) the dissolution of the Chamber of Representatives of the Territory.—Conditions governing the exercise of these powers.

JUDGMENT.

Before: M. GUERRERO, Vice-President, acting as President; Baron ROLIN-JAEQUEMYS, Count ROSTWOROWSKI, MM. FROMAGEOT, DE BUSTAMANTE, ALTAMIRA, ANZILOTTI, URRUTIA, ADATCI, Sir CECIL HURST, MM. SCHÜCKING, NEGULESCO, Jhr. VAN EYSINGA, M. WANG, Judges; M. RÖMER'IS, Judge ad hoc.

In the case concerning the interpretation of the Statute of the Memel Territory,

Between

the Government of His Britannic Majesty in the United Kingdom of Great Britain and Northern Ireland, represented by Sir William Malkin, K.C., K.C.M.G., C.B. ;

the Government of the French Republic, represented by M. J. Basdevant, Legal Adviser to the Ministry for Foreign Affairs, Professor at the Faculty of Law of Paris, as Agent, and by M. Charguéraud, Assistant Legal Adviser to the Ministry for Foreign Affairs, as Assistant Agent ;

the Government of His Majesty the King of Italy, represented by M. Massimo Pilotti, First President of a Court of Appeal, Legal Adviser to the Royal Ministry for Foreign Affairs, and by Count Senni, Envoy Extraordinary and Minister Plenipotentiary of Italy at The Hague ;

the Government of His Majesty the Emperor of Japan, represented by M. Matsunaga, Envoy Extraordinary and Minister Plenipotentiary of Japan at The Hague ;

and

the Government of the Republic of Lithuania, represented by M. Venceslas Sidzikauskas, Envoy Extraordinary and Minister Plenipotentiary of Lithuania in London,

THE COURT,

composed as above,

delivers the following judgment :

By an application instituting proceedings, filed with the Registry of the Court on April 11th, 1932, in accordance with Article 40 of the Statute and Article 35 of the Rules of Court, the Governments of His Britannic Majesty in the United Kingdom of Great Britain and Northern Ireland, of the French Republic, of His Majesty the King of Italy and of His Majesty the Emperor of Japan, brought before the Permanent Court of International Justice a suit against the

Government of the Lithuanian Republic in respect of a difference of opinion as to whether certain acts of the latter Government are in conformity with the Statute of the Memel Territory annexed to the Convention of May 8th, 1924, concerning Memel.

In the application, which relies on the jurisdictional clause in Article 17 of the said Convention, the applicant Powers state the subject of the dispute in the following terms:

"May the Court be pleased:

To decide....

(1) whether the Governor of the Memel Territory has the right to dismiss the President of the Directorate;

(2) in the case of an affirmative decision, whether this right only exists under certain conditions or in certain circumstances, and what those conditions or circumstances are;

(3) if the right to dismiss the President of the Directorate is admitted, whether such dismissal involves the termination of the appointments of the other members of the Directorate;

(4) if the right to dismiss the President of the Directorate only exists under certain conditions or in certain circumstances, whether the dismissal of M. Böttcher, carried out on February 6th, 1932, is in order in the circumstances in which it took place;

(5) whether, in the circumstances in which it took place, the appointment of the Directorate presided over by M. Simaitis is in order;

(6) whether the dissolution of the Diet, carried out by the Governor of the Memel Territory on March 22nd, 1932, when the Directorate presided over by M. Simaitis had not received the confidence of the Diet, is in order."

According to the terms of the letters under cover of which their diplomatic representatives at The Hague transmitted the application to the Court, the applicant Powers reserved the right to append their submissions to the Case which they would subsequently have to submit.

As the Court included, upon the Bench, judges of the nationality of the applicant Powers but no judge of Lithuanian nationality, the Lithuanian Government availed itself

of its right, under the terms of Article 31 of the Statute, to appoint a judge *ad hoc* to sit in the case.

The applicant Powers having in their application renounced their right to present a written Reply, the President of the Court—the latter not being in session—by an Order made on April 16th, 1932, fixed the dates for the presentation of a Case and a Counter-Case, the last date upon which the Lithuanian Government might present its Counter-Case being fixed as May 30th, 1932. The Case of the applicant Powers was filed on April 30th, 1932, within the time-limit fixed, but the Counter-Case was only filed on May 31st, 1932; the President, however, decided on the date last mentioned, under Article 33 of the Rules of Court, that this proceeding should be considered as valid.

By a document filed at the same time as its Counter-Case, the Lithuanian Government objected that the Court had no jurisdiction to deal with points 5 and 6 of the application mentioned above.

In these circumstances, the Lithuanian Government, in its Counter-Case, only presented its observations "on questions 1 to 4 of the application of the applicant Governments".

By a judgment given on June 24th, 1932, the Court overruled the Lithuanian preliminary objection and reserved points 5 and 6 of the application for judgment on the merits. The same day, it made an Order fixing July 9th as the date of expiration of the period within which the Lithuanian Government might file a Counter-Case on these points. This second Counter-Case was actually filed on July 2nd, 1932.

In the Case of the applicant Powers it is submitted:

"(a) that the Governor of the Memel Territory has no right to dismiss the President of the Directorate;

(b) that the termination of the appointment of the President of the Directorate does not *ipso facto* entail the termination of the appointments of the other members of the Directorate;

(c) that the appointment of the Directorate presided over by M. Simaitis was not in order, in the circumstances in which it took place;

(d) that the dissolution of the Memel Diet carried out by the Governor of the Territory on March 22nd, 1932, when

the Directorate presided over by M. Simaitis had not received the confidence of the Diet, was not in order”.

The first Lithuanian Counter-Case contains the following “general submissions” :

“May the Court be pleased to decide :

(1) that the Governor of the Memel Territory is entitled to dismiss the President of the Directorate ;

(2) that, in any event, the Governor of the Memel Territory is entitled to dismiss the President of the Directorate in the following cases :

(a) when the President has committed acts which compromise the sovereignty or unity of the Lithuanian State ;

(b) when the President has encroached upon the powers of the central authority ;

(c) when the President has exercised his powers in disregard of the principles of the Lithuanian Constitution ;

(d) when the President opposes the adoption by the local authorities of the measures necessary to apply in the Memel Territory international treaties concluded by Lithuania dealing with matters which are within the competence of the local authorities ;

(e) when the President opposes the adoption by the local authorities of the measures necessary to execute the provisions of the Statute and of those laws of the Republic which are applicable to the Territory ;

(3) that the dismissal of the President of the Directorate by the Governor entails the termination of the duties of the other members, who may only conduct current affairs of their departments if specially commissioned thereto by the Governor ;

(4) that the dismissal of M. Böttcher by the Governor of Memel on February 6th, 1932, was, in the circumstances in which it was effected, quite regular.”

In the second Counter-Case it is submitted :

“That since points 5 and 6 of the application of April 11th, 1932, by the Governments of France, Great Britain, Italy and Japan, do not relate to differences of opinion between the said Governments and the Government of the Lithuanian Republic, upon questions of law or fact concerning the provisions of the Convention of Paris of May 8th, 1924, but only to a difference of views between the five Governments as to the

political expediency of certain acts of the Lithuanian authority at Memel which do not come under Article 17, paragraph 2, these points cannot be entertained by the Court.

Alternatively, in the event of the Court not deciding that points 5 and 6 of the application of the four Governments are inadmissible, that :

1° the appointment of the Directorate presided over by M. Simaitis is in order in the circumstances in which it took place;

2° the dissolution of the Diet carried out by the Governor of the Memel Territory on March 22nd, 1932, is in order."

In the course of public sittings held on June 8th, 13th, 14th, 16th and 18th and July 11th, 12th and 13th, 1932, the Court heard the statements, observations, replies and rejoinder presented by Sir William Malkin, Agent of the Government of Great Britain, M. Charguéraud, Assistant Agent of the French Government, M. Pilotti, Agent of the Italian Government, and M. Matsunaga, Agent of the Japanese Government, and by M. Sidzikauskas, Agent of the Lithuanian Government.

The documents enumerated in the list in the appendix to this judgment were filed on behalf of one or other of the Parties, either as annexes to the documents of the written proceedings or in the course of the hearings.

Such are the circumstances in which, the submission being in all respects regular, the Court is now called upon to give judgment.

* * *

On May 8th, 1924, there was concluded at Paris the Convention between the British Empire, France, Italy and Japan of the one part, and Lithuania of the other part, by which the Four Powers transferred to Lithuania the sovereignty over the Memel Territory, subject to the conditions contained in the Convention. Under Article 2 of this Convention, the Memel Territory was to constitute, under the sovereignty of Lithuania, a unit enjoying legislative, judicial, administrative and financial autonomy, within the limits prescribed by the Statute which was annexed to the Convention and

which, as an annex, is to be considered under Article 16 of the Convention as constituting for all purposes part of the Convention.

The Court is not concerned with the reasons which led to the decision to transfer the sovereignty over Memel to Lithuania upon the special terms set out in the Convention and in the Statute, viz. that Memel should enjoy a régime of autonomy. For this reason, it is not necessary to give the history of the negotiations which preceded the conclusion of the Convention. It is sufficient to state that the decision of the Conference of Ambassadors on February 16th, 1923, which is mentioned in the preamble of the Convention as having been accepted by Lithuania on March 13th of that year, and also the resolution of the Constituent Assembly of Lithuania on November 11th, 1921, both of which documents have been laid before the Court, show that it was the intention of all Parties to the Convention that the autonomy to be conferred on Memel was to be real and effective, that is to say, that it was to give the people of Memel the right and the power to manage their own local affairs in their own way.

*

Some discussion has taken place in the course of the oral arguments as to the character of the Statute of Memel, which forms Annex I to the Convention of 1924 and regulates the autonomy of Memel. Lithuania drew attention to the fact that in form it was a Lithuanian enactment, and that it had in fact been enacted as a Lithuanian law. She therefore submitted that it should be regarded and interpreted as such. The contention of the Four Powers, on the other hand, is that while for internal purposes the Statute may perhaps be considered as forming part of the law of the Republic, it is for the Court only a part of a treaty. For the purpose of the present proceedings, the Court feels no doubt that, according to the very terms of Article 16 of the Convention, the Statute of Memel must be regarded as a conventional arrangement binding upon Lithuania, and that it must be interpreted as such.

*

The application instituting proceedings states the origin of the dispute as follows:

"The dismissal of the President of the Memel Directorate, M. Böttcher, the appointment of a Directorate presided over by M. Simaitis and the dissolution of the Diet have given rise to differences of opinion as to whether these acts are in accordance with the Statute of the Memel Territory which is annexed to the Convention of May 8th, 1924.

These differences of opinion have not been reconciled either by the enquiry conducted by the Council of the League of Nations, or by negotiations between the Powers signatories of the Convention of May 8th, 1924."

In order to give a clear idea of the circumstances which gave rise to the differences of opinion leading to the present proceedings, it is necessary to state the facts.

The Directorate of Memel, of which M. Böttcher was the President at the time of his dismissal, is the body which, under the Memel Statute, is to exercise the executive power in the Memel Territory.

On December 17th, 1931, M. Böttcher, accompanied by two members of the Chamber of Representatives, made a journey to Berlin. There is no agreement between the Parties to the present proceedings as to the object with which this journey to Berlin was undertaken, but certain facts with regard to it are not disputed. The Lithuanian Government were unaware of it; the facts only became known to them at a later date. The expenses of the journey were defrayed out of the public funds of the Territory. One of M. Böttcher's companions had no passport, and was given a special certificate by the German Consul-General at Memel to the effect that the bearer was going to Berlin for negotiations with the German authorities and that these negotiations were of considerable interest to Germany. While at Berlin, M. Böttcher and his travelling companions had interviews with public officials at the German Food Ministry and also at the Ministry for Foreign Affairs.

Such, in broad outline, are the undisputed facts. It will be necessary to go into the facts in somewhat greater detail

in connection with point 4, relating to the dismissal of M. Böttcher.

When the Governor of Memel became aware of the facts, he informed M. Böttcher on December 27th, 1931, that he (M. Böttcher) no longer possessed his (the Governor's) confidence and advised him to resign. On January 16th, 1932, M. Böttcher replied that he thought that there was a misunderstanding about his journey to Berlin, and that the misunderstanding could easily be cleared up by a verbal discussion. He therefore asked for an interview.

Whether any such interview took place is not clear. But on January 25th, 1932, the Governor reported the facts to the Memel Chamber of Representatives in a letter which was read to the Chamber that day, and M. Böttcher also made a statement. Thereupon the Chamber expressed its continued confidence in M. Böttcher by a vote of fifteen to four, with six abstentions. On February 6th, the Governor dismissed M. Böttcher from the Presidency. The text of the letter addressed to M. Böttcher was as follows :

"¹ Memel, le 6 février 1932.

Monsieur le Président,

Le 17 décembre de l'année dernière, à l'insu du Gouvernement de la République, vous vous êtes rendu dans la capitale d'un État étranger et vous y avez engagé des négociations avec le Gouvernement de cet État, et cela au mépris des organes légaux de votre propre État, qui sont seuls autorisés à conduire de telles négociations. Cette façon d'agir fait apparaître votre maintien au poste de président du Directoire comme incompatible avec les intérêts de l'État et constitue en outre une menace — ainsi qu'il résulte d'ailleurs des événements des derniers jours — pour l'ordre public de l'État.

C'est pourquoi, dans ces circonstances exceptionnelles, je me vois forcé de révoquer le décret, en date du 8 janvier 1931, par lequel je vous nommais président du Directoire.

¹ "Memel, February 6th, 1932.

"Sir,

"On December 17th of last year you proceeded, without the knowledge of the Government of the Republic, to the capital of a foreign State, and

En vous communiquant cette décision, je vous prie de remettre les affaires de président du Directoire à M. le conseiller Tolišius, que j'ai chargé de gérer les affaires de la présidence du Directoire jusqu'à ce que j'aie nommé un nouveau président.

Veuillez agréer, etc.

(Signé) MERKYS, Gouverneur."

On the same day the Governor wrote to M. Žygaudas, who was already a member of the Directorate, a letter containing the following passage: "I commission you to take over the duties of M. Böttcher and to act as President of the Directorate until I have appointed the new President of the Directorate." M. Žygaudas declined, and consequently the Governor instructed M. Tolišius to act as President *ad interim*. The other two members of the Directorate were also relieved of their offices.

On February 8th, the German Government submitted the matter to the Council of the League of Nations in pursuance of Article 17, paragraph 1, of the Memel Convention of 1924, and asked that, as the matter was urgent, the Council should be summoned to meet at once.

On February 13th, the Council met and heard statements from the German and from the Lithuanian representatives; it appointed M. Colban, the Norwegian representative, as Rapporteur. On February 20th, the Council met to consider M. Colban's report and again heard the German and Lithuanian representatives.

there entered into negotiations with the Government of that State, disregarding in so doing the lawful authorities of your own State, who are alone entitled to engage in such negotiations. As a result of this conduct on your part, your continuance in the office of President of the Directorate is felt to be inconsistent with the interests of the State and to constitute a danger—as is indeed confirmed by the events of the last few days—to the public order of the State.

"For these reasons, and in these exceptional circumstances, I feel compelled to cancel the Decree of January 8th, 1931, by which I appointed you President of the Directorate.

"I take the opportunity of this notification to request you to hand over the duties of President of the Directorate to Councillor Tolišius, whom I have instructed to carry on the work of the presidency of the Directorate, until I have appointed a new President.

"I have, etc.

"(Signed) MERKYS, Governor."

Paragraphs 2 to 7 of M. Colban's report were as follows:

"2. The question submitted to the Council is a very complex one.

On the one hand, there is the assertion that M. Böttcher, President of the Memel Directorate, was relieved of his duties by the Governor of the Territory unconstitutionally, in that paragraph 2 of Article 17 of the Statute of Memel specifies that the President shall remain in office so long as he possesses the confidence of the Chamber of Representatives of the Territory.

On the other hand, it is argued that the provisions of the Paris Convention of May 8th, 1924, and its annexes, do not exclude the right of the Governor to dismiss the Directorate in certain circumstances, and that in this particular instance M. Böttcher was quite properly relieved of his functions because the Lithuanian Government considered that he had usurped powers which belong to the central Government and had thus violated the Statute of Memel.

3. In addition to this difference on fundamentals, the facts cited in support of M. Böttcher's dismissal are set out by the Lithuanian Government in a way different from that in which they are set out on the other side.

4. The Council has been able to note with satisfaction the assurance of the Lithuanian Government that it intends scrupulously to fulfil all its international obligations arising under the texts applicable to Memel. The Council has also heard the Lithuanian representative's statement to the effect that the Governor of the Territory is endeavouring to establish a Directorate according to the conditions laid down in the Statute.

5. This notwithstanding, it is still of paramount importance that the present abnormal situation should be dealt with as soon as possible. This situation calls for urgent steps to prevent its aggravation.

6. The establishment of a Directorate enjoying the confidence of the Chamber of Representatives is an absolute necessity. This Directorate ought to come before the Chamber without delay. The situation is such that it would be desirable not to allow the extreme time-limit specified in paragraph 2 of Article 17 of the Statute to be reached. The Council cannot be too solicitous to see the normal working of the Statute re-established throughout the Territory.

7. These immediate steps do not prejudice the question of the lawfulness of M. Böttcher's dismissal. No opinion can

be expressed on this point until the question of the Governor's right to dismiss the Directorate has been settled. Even if it were admitted that the Governor is empowered to dismiss the Directorate, it would be necessary to consider what exactly were the circumstances, and whether they were such as to warrant the Governor exercising his power."

The report ended with a statement that M. Colban would have recommended the Council to ask the Permanent Court of International Justice for an advisory opinion, but hesitated to do so because of the difficulty of obtaining unanimity in favour of this suggestion. All he did therefore was to remind the Four Powers of the opportunities they enjoyed under paragraph 2 of Article 17 of the Memel Convention.

M. Colban's report was adopted by the Council, the Lithuanian representative making reserves as to paragraphs 5 and 6 of that report.

On February 23rd, 1932, M. Böttcher forwarded to the Governor his resignation from the post of President of the Directorate and, on the same day, the leaders of the majority parties in the Memel Chamber informed the Governor that, as M. Böttcher had now resigned, they were prepared to suggest nominees for the post of President of the Directorate. The Governor had invited them to do so, but on February 10th they had informed the Governor that they were not able to do so.

On February 27th, the Governor appointed as President of the Directorate M. Simaitis, a non-party man. The Governor issued at the time the following official announcement:

"In pursuance of Article 17 of the Statute of Memel, the Governor has appointed Eduard Simmat, Headmaster of a school, as President of the Directorate of the Territory of Memel.

The President newly appointed is carrying on conversations with the members of the majority parties with a view to the formation of a Directorate on a parliamentary basis. It is to be expected that the Directorate will be constituted at an early date."

The leaders of the majority parties appear at the time to have been content with the appointment of M. Simaitis, and

for a fortnight they negotiated with him in order to agree upon the composition of a new Directorate. On the 12th March, however, the negotiations broke down and the leaders of the majority parties informed the Governor that they would no longer accept M. Simaitis as President of the Directorate, but were willing to negotiate as to the formation of a Directorate on a parliamentary basis. M. Simaitis then formed his Directorate with two persons who were not members of the majority parties. The Directorate so formed by M. Simaitis submitted itself to the Chamber on March 22nd. The Chamber, after hearing a statement from the Directorate, refused its confidence by a vote of twenty-two to five. M. Simaitis then read a decree of the Governor dissolving the Chamber.

From the time of the proceedings at Geneva before the Council of the League of Nations, the Four Powers who were parties with Lithuania to the Convention of 1924 had been interesting themselves in affairs at Memel and had been endeavouring to compose the difficulties which had arisen. In the course of the negotiations they learned, as the result of an interview between the French Minister at Kovno and the Minister for Foreign Affairs, M. Zaunius, on February 27th that, if the majority parties refused to collaborate, it would lead to a dissolution. His remarks were reported by the French Minister as follows:

"¹ Au cas où ceux-ci refuseraient de la donner, le Gouvernement se verrait dans l'obligation de faire appel au parti minoritaire. Il s'ensuivrait un vote de méfiance, suivi de la dissolution de la Diète et d'élections nouvelles."

The French Minister thereupon made it clear that, in the opinion of the Four Powers, there was no justification for a dissolution:

"² J'ai fait alors remarquer à M. Zaunius que cette éventualité était contraire aux vues des Puissances. Mais mon insis-

¹ "In case the latter refused it, the Government would be compelled to address itself to the minority party. This would result in a vote of no-confidence, which would be followed by a dissolution of the Chamber of Representatives and the holding of fresh elections."

² "I then pointed out to M. Zaunius that such a result would be contrary to the views of the Powers. But my persistence did not lead him to modify

tance ne l'a pas fait fléchir. Il m'a déclaré avec vigueur qu'il avait fait à ce sujet les réserves les plus expresses devant le Conseil de la Société des Nations et que son Gouvernement, après mûre réflexion, était résolu à exercer en pareille occurrence ses droits de souveraineté. Ce n'est, bien entendu, qu'à la dernière limite qu'il aurait recours à cette mesure, et, pour éviter toute critique, ce n'est qu'après la levée de l'état de siège qu'auraient lieu éventuellement les élections."

On March 19th, after the constitution of the Simaitis Directorate, but before the dissolution of the Chamber took place, the Four Powers informed the Lithuanian Government that, if a Directorate possessing the confidence of the Chamber was not constituted at an early date, they would submit the questions at issue as to the dismissal of M. Böttcher to the Permanent Court of International Justice instead of to arbitration as had been proposed. They added that they would regard the dissolution of the Chamber as contrary to the recommendations of the Council of the League of Nations and would be obliged to consider whether it did not constitute a new infraction of the Memel Convention.

The Lithuanian reply to this note was sent on the same day. Its terms were as follows:

"¹ J'ai pris note de votre communication. Quant au fond, cette communication, dont la teneur m'avait d'ailleurs été

his attitude. He told me, with emphasis, that he had made express reservations on this point before the Council of the League of Nations and that his Government, after carefully considering the matter, was resolved to exercise its rights of sovereignty in such a case. It was only, of course, as a last resort that he would have recourse to this method; and to avoid any criticism, the state of siege would be brought to an end before any elections are held."

"¹ I have taken note of your communication. As regards its substance, this communication—the contents of which had already been conveyed to me by our Minister in London—leads me to make some brief preliminary comments:

Ad 1.—The present Directorate of the Memel Territory was formed after laborious negotiations between the President of the Directorate [M. Simaitis] and the parties in the Chamber of Representatives. It is only by the vote of the latter body, when the Directorate appears before it, that we shall learn whether or not the Directorate enjoys its confidence.

I protest most emphatically against your assertion that the formation of the present Directorate under M. Simaitis is inconsistent with what I said before the Council of the League of Nations.

Here are the exact words of my declaration at the Council meeting on February 20th last:

communiquée par notre ministre à Londres, appelle de ma part quelques brèves observations préliminaires.

Ad 1. — Le Directoire actuel du Territoire de Memel avait été formé après de laborieuses négociations entre le président

'After the remarks I made in the Council on February 13th, there can be no further doubt that the Governor of Memel is making efforts to set up a Directorate in accordance with the conditions laid down in the Statute. The Directorate will appear very shortly before the Chamber. In view of the attitude of certain members of the present majority in the Chamber who have been influenced from abroad, an appeal to the country, in accordance with the terms of the Statute, might ultimately become necessary.'

This is the only declaration by which I am bound. No one who is acquainted with the history of the negotiations at Memel during the last few weeks can, I feel sure, contest the genuineness of the Governor's efforts to secure the appointment of a Directorate enjoying the confidence of the Chamber.

If these negotiations did not succeed, the blame does not rest on the Lithuanian Government or its organs.

Ad 2.—The Lithuanian delegation expressly stated, during its negotiations at Geneva with the representatives of the Powers, signatories together with Lithuania of the Paris Convention, that it could not consent to a sort of amalgamation of the procedure to be adopted by agreement for settling some legal questions relating to the Böttcher incident, with the measures which the competent authorities on the spot had to take, under the Statute, in order to constitute the autonomous organs. This standpoint of the Lithuanian Government was also accepted by the representatives of the Powers. I am surprised, to say the least, that your Government should seek to make the carrying out of the procedure agreed on at Geneva dependent upon the appointment of a Directorate of a particular character.

In that case I should also have to withdraw the statement which I made at Geneva to the Ministers of the Three Powers, and which was repeated to the Foreign Office in London by the Lithuanian Minister, regarding the possible raising of the state of siege, if fresh elections were to be held.

Ad 3.—I can find no recommendations in M. Colban's report, as accepted by the Council, and as accepted also by myself, which conflict with a dissolution of the Chamber of Representatives of the Memel Territory. I had expressly reserved that possibility in my statement of February 20th. I am quite unable to see how the dissolution of the Chamber of Representatives of the Memel Territory, under the conditions laid down by the Statute, could possibly be a violation of that Statute; nor can I remain silent regarding the passage in your communication: 'if such an act does not constitute a further violation on the part of the Lithuanian Government', words which appear to anticipate the settlement of the legal issue we had agreed to submit to arbitration.

Furthermore, I have been disagreeably surprised to learn that the contents of the communication which you were pleased to make to me on behalf of your Government appeared a few days ago in the German press, and has been given world-wide publicity by the German official 'Wolf Agency'—though in a garbled and misleading form. I am compelled to give the Lithuanian press a concise summary of your communication and of the comments I have ventured to offer on this occasion.

Kaunas, March 19th, 1932."

du Directoire [M. Simaïtis] et les partis de la Diète. Seul le vote de cette Diète, lorsque le Directoire se présentera devant celle-ci, sera en mesure de nous apprendre si le Directoire jouit ou non de la confiance de la Chambre.

Je me vois obligé de formuler ma plus vive protestation contre votre assertion que la formation du Directoire actuel, présidé par M. Simaïtis, n'est pas compatible avec les engagements que j'aurais pris devant le Conseil de la Société des Nations.

Voici le texte exact de la déclaration que j'ai faite au Conseil à la date du 20 février écoulé :

« Il ne peut, après les observations que je me suis permis
« de faire à la séance du Conseil du 13 février courant, subsis-
« ter aucun doute que le gouverneur de Memel fasse des efforts
« en vue de la constitution d'un Directoire dans les conditions
« prescrites par le Statut. Ce Directoire se présentera inces-
« samment devant la Chambre. Étant donné l'attitude qu'ont
« prise certains éléments appartenant à la majorité actuelle de
« la Chambre, subissant des influences venant de l'étranger, un
« appel au pays, dans les conditions prescrites par le Statut,
« pourrait, le cas échéant, être nécessaire. »

C'est uniquement cette déclaration qui me lie. Quiconque connaît la marche des négociations qui ont eu lieu ces dernières semaines à Memel ne saurait, à mon avis, nier l'effort sérieux que le gouverneur a fait en vue de la constitution d'un Directoire jouissant de la confiance de la majorité de la Chambre.

Si ces négociations n'ont pas donné les résultats voulus, ce n'est pas le Gouvernement lithuanien ou ses organes qui en portent la responsabilité.

Ad 2. — La délégation lithuanienne a formellement déclaré, au cours des négociations qu'elle a eues à Genève avec les représentants des Puissances signataires avec la Lithuanie de la Convention de Paris, qu'elle ne saurait reconnaître une espèce de jonction entre la procédure qui devait être choisie d'un commun accord en vue de donner une solution à quelques questions de droit se rapportant à l'incident Böttcher et les mesures que les organes compétents sont appelés à prendre sur place en vue de constituer des organes autonomes, conformément au Statut. Ce point de vue du Gouvernement lithuanien a été également adopté par les représentants des Puissances. Je suis pour le moins étonné que votre Gouvernement ait cru devoir faire dépendre la mise en pratique de la procédure convenue à Genève de la constitution d'un Directoire d'un caractère défini.

Dans cette éventualité, je me verrais également obligé de retirer la déclaration que j'ai faite à Genève aux représentants des trois Puissances et qui a été répétée à Londres au Foreign Office, par le ministre de Lithuanie, relative à l'abolition éventuelle de l'état de guerre en cas de nouvelles élections.

Ad 3. — Je cherche en vain dans le rapport de M. Colban, adopté par le Conseil, et tel que je l'avais adopté moi-même, des recommandations qui s'opposeraient à la dissolution, dans les conditions prescrites dans le Statut, de la Diète du Territoire de Memel. Cette éventualité avait été expressément réservée dans ma déclaration du 20 février. Je me refuse à comprendre comment la dissolution de la Diète du Territoire de Memel, dans les conditions prescrites dans le Statut, pourrait constituer une infraction quelconque à ce Statut, et je ne peux pas passer sous silence l'expression contenue dans votre communication, notamment « si un tel acte ne constitue pas « de la part du Gouvernement lithuanien une nouvelle infraction », ce qui paraît anticiper la solution de la question de droit que nous avons convenu de soumettre à l'arbitrage.

Vu, d'autre part, que le contenu de la communication que vous avez bien voulu me faire au nom de votre Gouvernement a paru il y a quelques jours dans la presse allemande et a été répandue dans le monde entier par l'agence officielle allemande Wolff, bien que d'une manière inexacte et tendancieuse, ce qui m'a désagréablement surpris, je me vois obligé de donner à la presse lithuanienne un résumé succinct de votre communication ainsi que des observations que je me suis permis de faire à cette occasion.

Kaunas, le 19 mars 1932."

* * *

Of the six points set out in the application of the Four Powers, Nos. 1, 2 and 4 are intimately connected with the legality of the dismissal of M. Böttcher by the Governor, the action out of which the dispute arose.

Nos. 1 and 2 put in a general way the question whether the Governor of the Memel Territory has the right to dismiss a President of the Directorate, and if so in what conditions. No. 4 also puts the question of the right to dismiss, but with

specific reference to the facts connected with the dismissal of M. Böttcher. The Court will follow the same method and, without reference to the particular facts of the Böttcher incident, will deal first with the question whether, under the Statute of Memel, the Governor is entitled to dismiss a President of the Directorate, and if so in what circumstances.

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Before doing so, however, the Court desires to draw attention to the inconvenience resulting from the fact that the first two questions mentioned above, as well as question No. 3 concerning the possible termination of the appointments of the other members of the Directorate in consequence of the dismissal of the President, are formulated as questions purely *in abstracto*, without any reference to the facts of the dispute which has arisen.

It is true that the application instituting proceedings, in one of its earlier paragraphs, states that it is the dismissal of M. Böttcher, the appointment of the Directorate presided over by M. Simaitis and the dissolution of the Chamber of Representatives which have given rise to differences of opinion as to whether these acts are in accordance with the Memel Statute and which have led to the institution of these proceedings; but points 1, 2 and 3 are formulated in terms which go beyond the facts out of which the dispute has arisen and, so far as the Court can judge from the documents which have been laid before it, go beyond the questions of law or fact on which the Parties to the dispute had differed in opinion before the initiation of these proceedings on April 11th, 1932, and might therefore raise doubts as to the jurisdiction of the Court which, in this case, depends on Article 17, paragraph 2, of the Convention.

If it was the dismissal of M. Böttcher which was the origin of the dispute and which led up to the other acts complained of, viz. the appointment of a new Directorate and the dissolution of the Chamber, the convenient and appropriate method in which to bring the difference of opinion before the Court

would have been by means of submissions directed to the legality of these particular acts, leaving the Court to enunciate in its decision the principles on which that decision was based.

The inconvenience of the procedure followed in the present case is illustrated by point No. 2, in which the Court is asked, if it arrives at an affirmative conclusion on the first, to state what the conditions and circumstances are in which this right of dismissal would exist.

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Point No. 1 is worded as follows:

“whether the Governor of the Memel Territory has the right to dismiss the President of the Directorate”.

The contention of the Four Powers is that the Governor has no such right. As the jurisdiction of the Court is restricted to differences of opinion concerning the provisions of the Convention of Paris of 1924 (including its annexes), the meaning of the Four Powers is that the Governor possesses no such right under the Memel Statute.

It is common ground between the Parties that the power to dismiss a president of the Directorate is not given to the Governor *expressis verbis*, but the Lithuanian Government maintains that the power to dismiss is implied and that there is no provision in the Statute which either expressly or impliedly excludes it. The Four Powers, on the other hand, maintain that no such power can be implied and that there is one provision in the Statute which must mean that the power to dismiss is excluded. The passage to which the Four Powers refer is a provision in Article 17 of the Memel Statute which says that the President shall be appointed by the Governor and shall hold office so long as he possesses the confidence of the Chamber of Representatives.

To reply to these various arguments, the Convention of Paris of 1924 and the Statute annexed to it, must be considered as a whole in order to understand the régime which the Four Powers and Lithuania intended to establish for the Memel Territory.

When, under the Convention of Paris, these four Powers transferred to Lithuania all the rights and title acquired by them from Germany, under Article 99 of the Treaty of Versailles, over the Memel Territory, and Lithuania undertook to secure to that Territory autonomy within the limits fixed by the Statute of Memel, it certainly was not the intention of the Parties to the Convention that the sovereignty should be divided between two bodies which were to exist side by side in the same territory. Their intention was simply to ensure to the transferred territory a wide measure of legislative, judicial, administrative and financial decentralization, which should not disturb the unity of the Lithuanian State and should operate within the framework of Lithuanian sovereignty.

Whilst Lithuania was to enjoy full sovereignty over the ceded territory, subject to the limitations imposed on its exercise, the autonomy of Memel was only to operate within the limits so fixed and expressly specified.

It follows that the sovereign powers of the one and the autonomous powers of the other are of quite a different order in that the exercise of the latter powers necessitates the existence of a legal rule which cannot be inferred from the silence of the instrument from which the autonomy is derived, or from an interpretation designed to extend the autonomy by encroaching upon the operation of the sovereign power.

In the opinion of the Court, the foregoing follows more particularly from Article 1 of the Convention of Paris of 1924, whereby the Four Powers transferred to Lithuania all the rights and title which they held, over the Memel Territory, from Article 2 of the same Convention and Article 1 of the Statute, which provide that Memel shall constitute an autonomous unit "under the sovereignty of Lithuania", and finally from Article 7 of the Statute, which runs as follows:

"The affairs which, under the present Statute, are not within the jurisdiction of the local authorities of the Memel Territory shall be within the exclusive jurisdiction of the competent organizations of the Lithuanian Republic."

Given the terms of this Article, it is impossible to adduce the silence of the Statute in regard to any matter in order to restrict the sovereignty of Lithuania in favour of the autonomy of Memel, or to deny to the former the exercise of certain rights simply because they are not *expressly* provided for in the Statute of Memel. Moreover, the purpose of the Statute was not to confer rights on Lithuania, but to fix the limits of the autonomy which the Parties to the Convention of Paris of 1924 intended to establish in favour of the Memel Territory.

The Court holds that Memel's autonomy only exists within the limits fixed by the Statute and that, in the absence of provisions to the contrary in the Convention or its annexes, the rights ensuing from the sovereignty of Lithuania must apply.

For the purpose of its autonomy, i.e. for the purpose of managing its local affairs as it pleases, the Memel Territory is provided under the Statute with a legislature, an executive and a judiciary. Provision is also made for a Governor who represents the Lithuanian Government and plays, as Governor, a defined but important part in the local life of Memel. There are a large number of other provisions in the Memel Statute, but they are not relevant to the present case.

There is no need to say anything about the provisions in the Statute relating to the judiciary; but those relating to the legislature and the executive call for comment.

The legislative power is dealt with in Articles 10 to 18. The provisions need not be set out in detail, but attention must be drawn to three points:

(1) that the Governor is bound under Article 10 to promulgate laws passed by the Chamber unless he imposes his veto;

(2) that the exercise of this right of veto is regulated and limited by Article 16, which gives the Governor the right to veto in three cases, of which the first is if the laws exceed the competence of the Memel authorities, the other two being if the laws violate Article 6 of the Statute (stipulating that

the local authorities at Memel in carrying out their duties under the Statute are to conform, in the absence of provisions to the contrary, to the principles of the Lithuanian Constitution) or if they are incompatible with the international obligations of Lithuania;

(3) that the right to initiate legislation is restricted by Article 18 to the Chamber and to the Directorate, that is to say, to two local organs.

These points show in a striking manner that the legislature was intended to be completely independent within the prescribed limits of the autonomy, but that it was to have no legislative power outside those limits.

Turning now to the provisions in the Statute relating to the executive power, the important Article is No. 17. It vests the executive power in a Directorate. It is desirable to set out in full the first two paragraphs of this Article, as they contain the sentence on which the Four Powers have in part based their argument. The text of these paragraphs is as follows:

"The Directorate shall exercise the executive power in the Memel Territory. It shall consist of not more than five members, including the President, and shall be composed of citizens of the Territory.

The President shall be appointed by the Governor and shall hold office so long as he possesses the confidence of the Chamber of Representatives. The President shall appoint the other members of the Directorate. The Directorate must enjoy the confidence of the Chamber of Representatives and shall resign if the Chamber refuses it its confidence. If, for any reason, the Governor appoints a President of the Directorate when the Chamber of Representatives is not in session, it shall be convened so as to meet within four weeks after the appointment to hear a statement from the Directorate and vote on the question of confidence."

The first point to be noted is that the words which appear at the beginning of Article 10 "within the limits of this Statute" are omitted. Article 10 says: "Legislative power in the Memel Territory shall, within the limits of this Statute, be exercised...." Article 17 simply says that: "The Directorate shall exercise the executive power in the Memel Territory."

Nevertheless, the Court is convinced that Article 17 must be read as restricted to executive power in respect of matters within the competence of the Memel authorities, otherwise it would be in flagrant contradiction with the provisions of Article 7, which says that affairs which under the Statute are not within the jurisdiction of the local authorities are to be within the *exclusive* jurisdiction of the competent organizations of the Lithuanian Republic.

What should next be noted is the absence of any provisions as to what is to happen if acts of the executive authority at Memel exceed the competence of the authorities of the Territory. There is nothing to correspond to the veto on legislation exceeding the competence of those authorities.

The Court finds it impossible to believe that it was the intention of the Convention to leave Lithuania, the sovereign of the Memel Territory, with no remedy whatever if the executive authorities at Memel violated the Statute by acting in a manner beyond their powers.

It has been maintained on behalf of the Four Powers that any such provision was omitted because it was unnecessary. An executive act exceeding the competence of the Memel authorities under the Statute can, it is said, in cases where the Courts are unable to interfere, be ignored; it can be treated as *nul et non avenue*. For legislation beyond the competence of the Memel authorities, the right of veto is essential, because otherwise the Courts would enforce the legislation, but no such considerations apply to executive acts.

The argument is not convincing, and the Court does not feel able to accept it. It is not difficult to imagine cases in which it would be no sufficient protection to the Lithuanian Government to treat the act complained of as *non avenue*.

It has also been argued on behalf of the Four Powers that, even if it be assumed that the Lithuanian Government has some remedy if the executive authorities at Memel exceed their competence, that remedy cannot be the dismissal of the President of the Directorate, if the Chamber supports

him, because of the provision in Article 17, which says that the President shall hold office so long as he possesses the confidence of the Chamber. It is argued that this provision must exclude any power for the Governor to dismiss a President if the Chamber accords him its confidence.

This provision cannot, in the opinion of the Court, be isolated from the rest of the article in which it figures. The purpose of that Article is to make provision for the exercise of the executive power in the Memel Territory. The executive power is the power to carry out all such executive acts as fall within the competence of the Memel authorities. The right to continue to hold office which this provision accords to the President of the Directorate is accorded to him for the purpose of enabling him to carry out those acts. To place upon these words the meaning that the right so conferred upon the President of the Directorate is absolute and persists in all cases so long as the Chamber supports him, would result in a President being able to violate the Statute and to flout the authorities of the Lithuanian Government so long as he carried the Chamber with him. Such an interpretation would destroy the general scheme of the Convention of Paris of 1924 and the Statute annexed to it, under which Memel was to enjoy autonomy within defined limits, but was placed under the sovereignty of Lithuania. Both the autonomy as defined and the sovereignty were intended to be effective.

It would follow from the argument advanced on behalf of the Four Powers that, with the support of the Chamber, the President would be free to act in a manner exceeding the limits of the competence of the Memel authorities. It is not clear why the Chamber should be able, by expressing its confidence in the President, to endorse acts on his part which exceed the competence of the Memel authorities under the Statute. The Chamber is primarily a legislative body. Its powers in matters of legislation do not exceed the limits imposed by the Statute—see Article 10. If its acts as a legislature exceed those limits, they are vetoed under Article 16. It would be quite illogical to hold that in the executive sphere the Chamber should be able by a vote of confidence

to extend immunity to a President whose actions exceeded those limits.

For these reasons, the Court is led to the conclusion that this provision in Article 17 of the Statute does not bear the interpretation which has been placed upon it by the Four Powers, and that it is restricted in its operation to cases where the President of the Directorate is acting within the limits of the autonomy conferred upon the Memel Territory.

The Court is also led to the conclusion that it was not the intention of the Statute that the Lithuanian Government should be left with no protection against a violation of the Statute on the part of the Memel executive authorities and, further, that in cases where the Courts cannot interfere, the possibility of treating such acts as *non avenues* may be no sufficient protection.

The cases enumerated in Article 16 as cases in which the Governor may impose a veto on legislative acts are all of them cases in which the Lithuanian Government would equally require protection if the act were an executive act and not a legislative act.

Under the proper interpretation of the Statute, the Governor must be regarded as entitled to watch the acts of the executive power in Memel in order to see that such acts do not exceed the limits of the competence of the local authorities as laid down by the Statute, nor run counter to the stipulations of Article 6 of the Statute or to the international obligations of Lithuania. If they do, the principle laid down in Article 16, under which legislation is vetoed, must apply, that is to say that the Governor will be entitled to take appropriate steps to protect the interests of the Lithuanian Government.

As the Court is unable to hold that the sentence in Article 17 excludes in every case the right to dismiss a President of the Directorate who receives the support of the Chamber, it follows that under the correct interpretation of the Memel Statute, the right of the Governor to dismiss the President of the Directorate is not excluded.

The dismissal of the President of the Directorate by the Governor would constitute a legitimate and appropriate measure of protection of the interests of the State only in cases in which the acts complained of were serious acts calculated to prejudice the sovereign rights of Lithuania and violating the provisions of the Memel Statute, and when no other means are available.

Whether or not such a situation exists as calls for so extreme a measure as the dismissal of the President of the Directorate is primarily a question for the Governor to determine. But his decision would not be final. It would not prejudice the right of any Power concerned to take such steps as may be open to it under Article 17 of the Paris Convention.

Within the limits explained above, the Convention of Paris of 1924 and its annexes must be interpreted as giving the Governor the right to dismiss the President of the Directorate.

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The Agent for the Lithuanian Government based his submission that the Governor was entitled to dismiss the President of the Directorate upon the argument that the right of the Governor to appoint the President of the Directorate under Article 17 of the Statute implied a right of dismissal, and also upon the argument that the intention of the Statute was to confer upon the Governor the right to exercise a constant supervision and control over the proceedings of the Memel authorities, not merely for the purpose of seeing that they did not exceed the limits of their competence or violate the stipulations of the Statute, but also for the purpose of seeing that the Memel authorities, when acting within the limits of their competence, discharged their functions adequately, and that the power to dismiss followed necessarily from the existence of this right of supervision and control.

The Court is not disposed to accept these arguments.

If the right to appoint implied also the right to dismiss, it would be difficult to find in the terms of the Statute any satisfactory reason for rendering the right to dismiss less

extensive than the right to appoint, but the Lithuanian Agent has not argued that the right to dismiss is other than an exceptional right to be exercised only in extreme cases.

The argument to support the alleged right of supervision and control consisted almost entirely of deductions drawn from the contents of constitutions in force in other countries, from the constitutional practice of other countries and from the statements made in the works of authors who have studied these constitutions. The Court finds in the Convention of Paris and its annexes the basis for the conclusion that in certain circumstances the Governor has the right to dismiss the President of the Directorate. It is therefore unnecessary to consider the extent to which the constitutions of other countries can be used as a guide interpreting the Statute of Memel.

The Court does not consider that any right on the part of the Governor of supervision and control over the executive acts of the Memel authorities has been established over and above that expressed in an earlier part of this Judgment, namely, the right of the Governor to watch the acts of the executive power in Memel in order to see that these acts do not exceed the limits of the competence of the local authorities as laid down by the Statute, nor run counter to the stipulations of Article 6 of the Statute or to the international obligations of Lithuania.

The submissions of the Parties as regards point 1 are directly opposed to each other. According to that of Lithuania, the Governor is entitled to dismiss the President of the Directorate; according to that of the Four Powers, he is not entitled to do so. Neither of these submissions can, as it stands, be accepted by the Court. In the opinion of the Court, the Governor has, in certain circumstances, the right to dismiss the President of the Directorate.

* * *

Point 2 is worded as follows :

“in the case of an affirmative decision [to question 1], whether the right [to dismiss the President] only exists under certain conditions or in certain circumstances, and what those conditions or circumstances are”.

The Court has already laid down the broad principle governing the exercise by the Governor of the right to dismiss the President of the Directorate at Memel. The principle so laid down is sufficient to indicate the conditions and circumstances in which such a right would exist. The Court is not able to go further, because whether or not such conditions or circumstances were present would always depend on the facts of the particular case.

* * *

Point 3 is worded as follows :

“if the right to dismiss the President is admitted, whether such dismissal involves the termination of the appointments of the other members of the Directorate”.

This question has been regarded by both sides as a matter of somewhat secondary importance, and it has not been very fully treated in the oral arguments.

The right of the Governor to dismiss the President of the Directorate arises only in exceptional circumstances, and, though it results from the Statute, it is not regulated by it. It follows that the consequences resulting from it are not to be found regulated in detail in the Statute. They can only be deduced from a consideration of the broad lines of the régime which the Statute intended to introduce in Memel.

The autonomy which the Statute confers upon the Memel Territory covers so broad a field that the powers of government conferred upon the Directorate must entail the constant exercise of governmental acts. The Territory cannot without inconvenience be left without a government. The Court observes that this fact was recognized by the Governor at the

time of the dismissal of M. Böttcher, for he took steps at once to empower another gentleman to exercise the powers of President until a definitive appointment was made.

The form which was given to the dismissal of M. Böttcher was that of the revocation of the decree by which the Governor had appointed him to be President of the Directorate. This is the form which presumably would be employed whenever the Governor was obliged to have recourse to the extreme measure of dismissing the President. It is a form which necessarily renders the act of dismissal personal to the President and therefore limited, so far as the Governor is concerned, to the President. It does not automatically entail the cessation of the functions of the other members of the Directorate.

The system followed in the Statute for bringing a Directorate into being—that of the Governor appointing the President, and the President appointing the other members—was obviously intended to result in unity of view between all the members of the Directorate, so as to ensure harmonious co-operation. When an appointment to the post of President is made, the new President will be entitled to exercise the right given him by Article 17 to appoint the other members of the Directorate, and on the making of such appointments the previous holders of the posts will vacate them.

The submission of the Lithuanian Government on point 3 is that the dismissal of the President by the Governor involves the cessation of their functions by the other members of the Directorate, and that these can only conduct the current work of their departments under a special authorization from the Governor.

For the reasons explained above, the Court does not accept this submission.

The submission by the Four Powers is that the termination of the appointment of the President of the Directorate does not, *ipso facto*, entail the termination of the appointment of the other members of the Directorate.

The wording of their submission is wider than the question submitted to the Court, as point 3 is limited to the effect of the dismissal of the President upon the position of the other members of the Directorate. It was explained in the course

of the arguments that as the Four Powers submitted that the Governor had no power under the Statute to dismiss the President, the question in its narrower form could not arise. The submission of the Four Powers therefore contemplated the only eventuality which in their opinion was possible, viz. the effect on the other members of the Directorate if the post of President became vacant in a legal manner.

The Court is not satisfied that this broader aspect of the question has been the subject of any difference of opinion between the Parties sufficient to give it jurisdiction under Article 17 of the Convention. The Court thinks it better to limit its judgment to the question on which there certainly has been a difference of opinion and which had been dealt with in the arguments, viz. the position which arises in the event of a dismissal of the President by the Governor.

In the opinion of the Court, the dismissal of the President of the Directorate by the Governor does not by itself involve the termination of the appointments of the other members of the Directorate. They will hold their posts until they are replaced.

* * *

Point 4 is worded as follows:

"if the right to dismiss the President of the Directorate only exists under certain conditions or in certain circumstances, whether the dismissal of M. Böttcher carried out on February 6th, 1932, was in order in the circumstances in which it took place".

As the Court has come to the conclusion that the right to dismiss the President of the Directorate exists in certain conditions, the only point for consideration under point 4 is whether the circumstances in which M. Böttcher was dismissed bring the case within those conditions.

The Court has already said that the Governor is only justified in exercising the right of dismissing the President of the Directorate in case of serious acts violating the Convention of May 8th, 1924, with its annexes, and calculated to prejudice the sovereignty of Lithuania and where no other remedy is available; the existence or otherwise of such a situation

being a question for the Governor to determine, but subject always to the responsibility of the Lithuanian Government under Article 17 of the Convention.

The point which the Court must now decide is whether M. Böttcher's actions, when viewed in the light of the above statement of principle, justify the Governor in dismissing him.

The reasons given for the Governor's action are set out in the letter of dismissal which he sent to M. Böttcher on February 6th, 1932. They are that M. Böttcher, without the knowledge of the Lithuanian Government, had gone to the capital of a foreign State and there engaged in negotiations with the Government of that State in disregard of the departments of the Lithuanian Government which alone were entitled to conduct such negotiations. It is not disputed that it was to Berlin that M. Böttcher went.

The Four Powers have not thought it necessary to prepare and submit to the Court any detailed statement of the facts relating to this visit to Berlin, and as to what happened there. They have thought it sufficient to rely on the minutes of the meetings of the Council of the League of Nations at Geneva on February 13th and 20th, 1932, and on the proceedings in the Chamber of Representatives at Memel on January 25th. The Lithuanian Agent on his part has added certain other documents.

The facts relating to M. Böttcher's visit to Berlin have been stated in broad outline in the earlier part of this Judgment.

The position taken by M. Böttcher in his declaration before the Chamber was that he went to Berlin in a private capacity, and not as President of the Directorate; that no decision of the Directorate had been taken authorizing him to make this journey as a member of the Directorate; that as chairman of an agricultural purchasing committee and as a member of the board of the co-operative milk organization, he felt bound to do all he could for the benefit of Memel agriculture; that there was general agreement in the circles to which he belonged and that an assured market in Germany was the only remedy for the existing distresses; that the conversations he had at Berlin were purely economic, and that he only took part in them as an expert. Also that

when he and his colleagues learned from the German authorities that negotiations were already in progress with the Lithuanian Government about the importation of certain agricultural produce, they begged that the negotiations might be hastened as much as possible.

It is none the less true, however, that M. Böttcher's object must have been to try and secure some benefit for Memel agriculture as a whole, not merely for the members of some particular agricultural organization over which he presided or with which he was connected; otherwise he would have had no justification for charging his expenses to the Memel public funds. His object must have been to make, if he could, some arrangement with the German Government without consulting the Lithuanian Government, or he would not have secured the active assistance of the German Consul-General in furthering the journey while leaving the Lithuanian Government in ignorance of it. It may safely be assumed that he tried to secure better terms for the admission into Germany of Memel agricultural produce, terms more favourable than those enjoyed by Lithuania generally.

It is not disputed on behalf of the Four Powers that the conduct of foreign relations is not among the questions which, under Article 5 of the Statute, are within the competence of the Memel authorities. Foreign relations are, under Article 7, within the exclusive jurisdiction of the Lithuanian Republic. The attempt to secure an arrangement as to the admission of agricultural produce by negotiations with the officials of the competent departments of the German Government falls within the sphere of foreign relations, and consequently M. Böttcher's action exceeded the competence of the Memel authorities and thereby violated the Statute.

The character of M. Böttcher's action is not to be judged merely by the contents of the arrangement which he tried to conclude. The economic position at Memel may be such as to render an attempt to secure a new outlet for agricultural produce a matter of great importance to the people of the Territory. But the gravity of the incident must be judged

by reference to the repercussions which such an arrangement as M. Böttcher hoped for might have.

It is impossible to read the minutes of the meetings of the Council of the League on February 13th and February 20th, 1932, without observing that at the time of the Böttcher incident relations were somewhat disturbed between Lithuania and Germany. The diplomatic correspondence exchanged between the two Governments in January of the same year shows that various causes of friction existed. The sudden grant to Memel of better terms than Lithuania as a whole enjoyed for the admission of agricultural produce into Germany might well embitter the situation at Memel and undermine the feeling of loyalty towards the central authorities.

In these circumstances, M. Böttcher's act was one which Lithuania was justified in regarding as being of a serious nature and one which was calculated to prejudice her sovereign rights. As the Court has already found that the act constituted a violation of the Statute, it was therefore an act against which Lithuania was entitled to protect herself.

It is not apparent that any measure which left M. Böttcher in possession of his office as President of the Directorate would have afforded adequate protection to the Lithuanian Government. It is therefore a case where the Governor was justified in dismissing the President. For the Governor to treat M. Böttcher's actions as *non avenue* would have afforded no adequate protection. It would have afforded no guarantee against further efforts of a like kind on the part of M. Böttcher and his colleagues to intrude themselves into a sphere which was not within the limits of the autonomy of Memel as defined by the Statute, but fell within the exclusive competence of the Lithuanian Government.

It has been contended on behalf of the Four Powers in the present case that if a Governor acts as the Governor of Memel did in connection with M. Böttcher, and submits to the Chamber the facts relating to the action on the part of the President of the Directorate of which he complains, he is bound by the conclusion at which the Chamber arrives,

and that if the Chamber renews its confidence in the President of the Directorate, the Governor can take no further action.

The purpose with which the Governor submitted the facts of his dispute with M. Böttcher to the Chamber in his letter of January 25th, is not very clear. He may have thought that as the Chamber was in a position to control the President of the Directorate, a withdrawal of its confidence by the Chamber was the simplest solution of the difficulty and the best method of restoring amicable relations.

The Court considers that in the present case the Governor's action cannot be taken as a waiver on his part of the right to take further measures, if necessary.

The Four Powers make no submission with regard to point 4, because in their view the Governor can have no right under the Memel Statute to dismiss the President of the Directorate. The Lithuanian submission is that the dismissal of M. Böttcher was in order.

The Court decides that the dismissal of M. Böttcher on February 6th, 1932, was in order in the circumstances in which it took place.

* * *

Points 5 and 6.—Basing itself on a passage in the Case of the Four Powers, the second Lithuanian Counter-Case submits that points 5 and 6 are "inadmissible" on the ground that the contentions of the Four Powers show no difference of opinion on a question of law or fact within the meaning of Article 17 of the Memel Convention. The passage in question is to the effect that the recommendations of the Council of the League of Nations on February 20th paved the way for a return to the normal situation in the political life of the Memel Territory by the appointment of a Directorate enjoying the confidence of the Chamber; that at a date subsequent to these recommendations M. Böttcher handed in his resignation and the leaders of the majority parties

informed the Governor that they would collaborate in the formation of a new Directorate; it is therefore said that the complaints of the Four Powers as regards the appointment of the Directorate presided over by M. Simaitis and the dissolution of the Chamber are not founded on an alleged violation of the Memel Statute but on a criticism of the expediency of the political decisions of the Governor; and that as such they do not fall within the terms of Article 17 of the Convention.

This contention on the part of the Lithuanian Agent is in effect a plea to the jurisdiction of the Court on the ground that the questions at issue under points 5 and 6 are beyond its jurisdiction.

The objection must be overruled in the present case.

The Court is satisfied that the Lithuanian Agent has misunderstood the nature of the complaints of the Four Powers with regard to points 5 and 6. In both cases it is alleged by the Four Powers that the action of the Governor was not in conformity with the Statute of Memel, not merely that he took some action which he could legitimately take under the Statute but which it was inexpedient to take. It is maintained that the act of the Governor both as regards the appointment of the Simaitis Directorate and as regards the dissolution of the Chamber was an act which the Statute of Memel obliged him to refrain from taking in the particular circumstances. As, in each case, it is maintained on behalf of Lithuania that the act of the Governor was in conformity with the Statute, it is clear that there is a difference of opinion between the Parties in regard to a question of law or fact concerning the Memel Statute sufficient to give the Court jurisdiction under Article 17 of the Convention, if the difference of opinion is submitted to it in due form.

Points 5 and 6 must therefore be dealt with on their merits.

* * *

The wording of point 5 is as follows:

“whether, in the circumstances in which it took place, the appointment of the Directorate presided over by M. Simaitis is in order”.

The phrase used in this question "appointment of the Directorate presided over by M. Simaitis" is not precise. It is necessary to describe the process by which a Directorate comes into being, in order to determine what it is that the question must be taken to refer to.

Under Article 17 of the Statute, the Governor appoints the President of the Directorate and the President appoints the other members. Thus there are two stages. The Governor is concerned only with the first. As soon as the appointment of the President is made, the Governor's responsibility with regard to the creation of the Directorate comes to an end. The President alone is responsible for the choice of the other members; he does not have to submit their names to the Governor or get the Governor's approval. Their appointment depends on the will and the act of the President alone. If the Governor were to interfere in the appointment of these other members in the sense of endeavouring to dictate to the President whom he should appoint, he would exceed the functions attributed to him by the Statute.

A necessary consequence of the fact that the Governor is not the deciding factor in the choice of the members of the Directorate other than the President, is that the Lithuanian Government cannot be made responsible in proceedings before this Court for the acts of the President in appointing the other members of the Directorate. The obligatory jurisdiction of the Court which Lithuania accepted in Article 17 of the Memel Convention cannot be regarded as extending beyond acts for which she is herself responsible.

When the Four Powers ask the Court in these proceedings against Lithuania to decide whether the appointment of the Simaitis Directorate was in order, the question must be taken to refer to the appointment of M. Simaitis by the Governor to the post of President of the Directorate, that being the only act in the constitution of the Directorate for which Lithuania was responsible, or in respect of which the Court can give a decision. The question cannot be taken as covering also the appointment by the President of the other members of the Directorate.

Article 17 of the Statute provides that the Directorate shall be composed of citizens of the Territory. This is the only qualification for membership of the Directorate which is expressly stated in the Statute. The question has arisen whether any further element may have to be taken into account in order to render an appointment valid. It has been maintained on behalf of the Four Powers that a Directorate cannot remain in office unless it enjoys the confidence of the Chamber, and therefore the views of the Chamber constitute an element which must be taken into account by the Governor when he makes the appointment of a President. From this it follows that, even if citizenship of Memel is the only qualification expressly stated, the Governor's choice is not unfettered, even among the citizens of Memel.

It may be taken for granted that in coming to a decision as to whom he would appoint to be President of the Directorate, a prudent Governor would not forget the provision in Article 17 of the Statute that a Directorate must enjoy the confidence of the Chamber and must resign if the Chamber refuses it its confidence. The question is whether the need to do this constitutes a legal obligation upon the Governor, and whether, if it can be shown that he has failed to do so, the appointment that he has made would not be in order.

In the opinion of the Court, the only qualification in law for membership of the Directorate is that laid down in Article 17: citizenship of the Territory. The duty of the Governor to limit his choice to persons to whom it may reasonably be expected that the Chamber will accord its confidence is not a legal obligation. It is a matter of good sense, a natural consequence of the desire which any Governor of the Territory would feel to do his best to make the Statute work successfully.

There certainly is no obligation upon the Governor to secure the concurrence of the Chamber in advance by negotiations with the parties or groups in the Chamber. The confidence of the Chamber is a matter which the Chamber will express for itself by its vote in due course when the Directorate submits itself to the Chamber. Under the Statute,

the Governor makes the appointment on his own responsibility and the Chamber gives or refuses its confidence at a later stage.

What the position would be if the Governor appointed as President of the Directorate a citizen as to whom it was certain at the time that he could not receive the confidence of the Chamber, as, for instance, if he appointed a person bereft of intellect, is a matter which the Court need not consider, because no such considerations arise in the present case.

After the resignation of M. Böttcher on February 23rd, there can be no doubt that the post of President of the Directorate was vacant, and that it was the right and the duty of the Governor to proceed to the appointment of a new President. The reasons which led him to appoint M. Simaitis, a person who did not belong to the existing political parties at Memel, have been explained to the Court in the course of the proceedings. They are reasons which the Court can appreciate, but they are not matters on which it is for the Court to express an opinion. There is no doubt that M. Simaitis was a qualified person.

After his appointment, M. Simaitis was engaged for a fortnight in negotiations with the leaders of the majority parties in order to form a Directorate acceptable to them. If these negotiations had been successful, the Chamber would presumably have accorded a vote of confidence to the Directorate in due course. It follows that even if it could be held that there was a legal obligation upon the Governor to appoint as President of the Directorate a man to whom, so far as could be reasonably foreseen, the Chamber might be expected to accord its confidence, that legal obligation was fulfilled in the present case.

It has been suggested in the course of the arguments that M. Simaitis was only appointed by the Governor in order to obtain a dissolution, and that any such action on the part of the Governor cannot be consistent with the Statute. The suggestion that M. Simaitis was appointed for this purpose is not borne out by the facts. If the negotiations with the majority parties had been successful, there would have been no dissolution. The only substantial argument in support of this

suggestion is that both at Geneva and at Kovno, in his negotiations with the representatives of the Four Powers, M. Zaunius, the Lithuanian Minister for Foreign Affairs, expressed the opinion that if the majority leaders refused to co-operate in the appointment of a Directorate, and if the Chamber refused its confidence to the only Directorate that could be formed, there would have to be a dissolution. These remarks by M. Zaunius do not amount to more than a forecast of what might happen at Memel; they are not inconsistent with a genuine desire to see the formation of a Directorate acceptable to the Chamber and to make every effort for that purpose. Even if it is assumed that instructions in the sense of M. Zaunius's remarks were given to the Governor, they would not have prevented the Governor from appointing M. Simaitis with the hope and the intention that the appointment would lead to the constitution of a Directorate which would gain the confidence of the Chamber, even if the Governor also thought that, should it fail to do so, a dissolution was the inevitable outcome and was permissible under the Statute.

The Lithuanian submission as regards point 5 is that the appointment of the Directorate presided over by M. Simaitis is in order in the circumstances in which it took place. In the course of the oral arguments, the Lithuanian Agent slightly modified the above formula and submitted that in appointing M. Simaitis to be President of the Directorate on February 27th, 1932, the Governor infringed no stipulation of the Memel Statute, and that in consequence the appointment was not infected with any irregularity.

The submission on behalf of the Four Powers is that the appointment of the Directorate presided over by M. Simaitis was not in order.

The Court decides that the action of the Governor in appointing M. Simaitis to be President of the Directorate involved no action which was contrary to the Statute, and that in the circumstances in which it took place the appointment of the Directorate over which M. Simaitis presided was therefore in order.

* * *

The sixth point is worded as follows:

“whether the dissolution of the Diet, carried out by the Governor of the Memel Territory on March 22nd, 1932, when the Directorate presided over by M. Simaitis had not received the confidence of the Diet, is in order”.

The French text of the question shows that by the word “Diet” in the English text is meant the “Chamber of Representatives” which is set up by Articles 10 to 16 of the Statute as the legislative authority of the Memel Territory.

The dissolution of the Chamber is regulated by paragraph 5 of Article 12 of the Statute, which provides as follows:

“The Chamber may be dissolved by the Governor in agreement with the Directorate. The elections to the new Chamber shall take place within six weeks from the dissolution.”

The intention of this provision is clear. The Governor is not entitled under the Statute to dissolve the Chamber on his own authority. It requires the concurrence of the Directorate. What is the reason for requiring the consent of the Directorate? Bearing in mind the importance which is attached in Article 17 of the Statute to the Directorate possessing the confidence of the Chamber, it is a fair deduction that the reason why a dissolution was not to take place without the consent of the Directorate was in order to ensure that the local elements should have some voice in the decision whether or not the Chamber should be dissolved.

It cannot be doubted that a Directorate comes legally into existence as soon as it is constituted. From that moment it is entitled to act as the Directorate and to transact business. It need not wait for the Chamber to express its confidence. The work of the administration of the Territory must be carried on.

On the other hand, a Directorate which has never obtained the confidence of the Chamber may represent no more than the individual will and views of the Governor and of his

nominee for the post of President of the Directorate. There is no guarantee that their views represent in any way whatever the views of the local elements at Memel. If such a body is competent to agree to a dissolution under Article 12, paragraph 5, the situation would approach very near to that of according a power of dissolving the Chamber to the Governor alone, and that, as stated above, is clearly not the intention of Article 12.

The facts with regard to the dissolution of the Chamber in the present case are that, after M. Simaitis had formed his Directorate, he made his statement to the Chamber and submitted the Directorate to the Chamber for a vote of confidence on March 22nd, 1932. After hearing speeches from the leaders of some of the parties in the Chamber, the vote was taken and the Chamber refused its confidence. Thereupon M. Simaitis produced and read to the Chamber the Governor's decree of dissolution.

If it was the intention of Article 12 that the Chamber should not be dissolved by the Governor alone without the concurrence of a body which could be taken as in some way representing the local elements at Memel, some distinction must be drawn between the powers of a Directorate which has, and the powers of a Directorate which has not, received the confidence of the Chamber.

Dissensions may well arise between the Chamber and a Directorate duly installed in office, i.e. which had received at the outset of its career the confidence of the Chamber. Such occurrences are common in all countries which are subject to a parliamentary régime. It may well happen in such a case that the Directorate would believe that the policy which it desired to follow was the right policy and the policy which would commend itself to the electorate. The Directorate is in such cases qualified under Article 12 to agree to a dissolution. It would only desire a dissolution because it expected that the electorate would support it. A Directorate so circumstanced satisfies the requirement, which the Court feels must have been intended when Article 12 of the Statute was drafted, that the Governor cannot dissolve the

Chamber without the concurrence of an element which can be regarded as representing local views and feelings.

The text of the Statute does not exclude this distinction, as regards agreeing to a dissolution, between the powers of a Directorate which has in the past secured the confidence of the Chamber and loses it on the occasion of some subsequent vote, and those of a Directorate which has never received the confidence of the Chamber. To give effect to what the Court considers to have been the intention of the Statute, such a distinction must be made.

It is not the formal vote of confidence in the early days of its career which justifies the greater power in the former case; it is the right of such a Directorate to be regarded as representing the local element. Consequently, a Directorate with which the Chamber has in fact collaborated effectively, even if there had never been a formal vote of confidence, would equally be entitled to agree to a dissolution.

The Court attaches no importance to the fact that the agreement by the Directorate to the dissolution of the Chamber by the Governor was given before the Chamber passed the vote of no-confidence which rendered the dissolution necessary. If the Directorate was entitled to agree to a dissolution at all, it was just as entitled to do so before as after the vote was taken.

The conclusion at which the Court has arrived, namely, that a Directorate which has never enjoyed the confidence of the Chamber is not entitled to consent to dissolve the latter, also finds support in other considerations than those given above. Article 12 of the Statute should be read in connection with Article 17. The last sentence of paragraph 2 of Article 17 provides as follows: "If, for any reason, the Governor appoints a President of the Directorate when the Chamber of Representatives is not in session, it shall be convened so as to meet within four weeks after the appointment to hear a statement from the Directorate and vote on the question of confidence." According to this provision, it is abundantly clear that a newly formed Directorate which has not

enjoyed the confidence of the Chamber cannot proceed forthwith to dissolve the latter, but must on the contrary convoke it within a certain period of time. It would be unreasonable to suppose, and there is nothing in the Statute which can justify the Court in supposing, that a Directorate not possessing the confidence of the Chamber could proceed to dissolve the latter in case it was appointed during a session, instead of during the recess of the Chamber.

The submissions of the Parties with regard to point 6 are, in the case of Lithuania that the dissolution was in order, and in the case of the Four Powers, that it was not so.

The conclusion at which the Court arrives is that, on the proper construction of the Statute, the Governor cannot dissolve the Chamber except with the consent of a Directorate which has functioned as a Directorate with the consent of the Chamber. In the present case, the Directorate presided over by M. Simaitis had never functioned as a Directorate with the consent of the Chamber. Consequently, when the Governor proceeded to the dissolution on March 22nd, he issued the decree with the consent of a body which was not capable of giving the consent which paragraph 5 of Article 12 requires in such cases.

The answer as to point 6 must therefore be that the dissolution of the Chamber on March 22nd was not in order.

The Court thinks it well to add that its function in the present case is limited to that of interpreting the Memel Statute in its treaty aspect. It has arrived at the conclusion that on the proper construction of the Statute the Governor ought not to have taken certain action which he did take. It does not thereby intend to say that the action of the Governor in dissolving the Chamber, even though it was contrary to the treaty, was of no effect in the sphere of municipal law. This is tantamount to saying that the dissolution is not to be regarded as void in the sense that the old Chamber is still in existence, and that the new Chamber since elected has no legal existence. The Court is satisfied that that was not the

intention of the Four Powers when they submitted point 6 to the Court. The Court infers from the closing words of the speech of the Agent of one of these Powers that the intention of the Four Powers was only to obtain an interpretation of the Statute which would serve as a guide for the future.

FOR THESE REASONS,

The Court,
by ten votes to five,
decides :

(1) that the Governor of the Memel Territory is entitled, for the protection of the interests of the State, to dismiss the President of the Directorate in case of serious acts which violate the Convention of Paris of May 8th, 1924, including its annexes, and are calculated to prejudice the sovereignty of Lithuania, and if no other action can be taken ;

(2) that the dismissal of the President of the Directorate does not by itself involve the termination of the appointments of the other members of the Directorate ;

(3) that the dismissal of M. Böttcher as President of the Directorate, carried out on February 6th, 1932, was in order in the circumstances in which it took place ;

(4) to reject the objection of the Lithuanian Government to the admissibility of the points as to whether the appointment of the Directorate presided over by M. Simaitis and whether the dissolution of the Chamber of Representatives of the Memel Territory on March 22nd, 1932, were in order ;

(5) that, in the circumstances in which it took place, the appointment of the Directorate presided over by M. Simaitis was in order ;

(6) that the dissolution of the Chamber of Representatives of the Memel Territory which was carried out on March 22nd, 1932, by the Governor of the said Territory when the Directorate presided over by M. Simaitis had not received the confidence of the Chamber, was not in order.

Done in French and English, the French text being authoritative, at the Peace Palace, The Hague, this eleventh day of August, nineteen hundred and thirty-two, in six copies, one of which shall be placed in the archives of the Court and the other delivered to the Agent of the Government of His Britannic Majesty in the United Kingdom of Great Britain and Northern Ireland, of the Government of the French Republic, of the Government of His Majesty the King of Italy, of the Government of His Majesty the Emperor of Japan and of the Government of the Lithuanian Republic respectively.

(Signed) J. G. GUERRERO,
Acting President.

(Signed) Å. HAMMARSKJÖLD,
Registrar.

MM. de Bustamante, Altamira, Schücking and Jonkheer van Eysinga, Judges, whilst concurring in points 4 and 6 of the operative part of the judgment and in the portion of the statement of reasons relevant thereto—except that Jonkheer van Eysinga cannot agree to the last paragraph before the operative part—declare that they are unable to concur in the judgment given by the Court; availing themselves of the right conferred on them by Article 57 of the Statute, they have indicated their dissent from point 1 in the opinion which follows hereafter.

M. Anzilotti, Judge, declares he is unable to concur in the judgment given by the Court and, availing himself of the right conferred on him by Article 57 of the Statute, has appended to the judgment the dissenting opinion which follows hereafter.

M. Urrutia, Judge, declares that he cannot concur in clauses 1 and 3 of the operative part of the judgment of the Court or in the grounds on which they are based. In

his opinion, the right of the Governor to dismiss the President of the Directorate, while the latter possesses the confidence of the Chamber of Representatives, cannot possibly be inferred from the Convention of May 8th, 1924, or from the Statute annexed thereto; on the contrary, such a right would be in conflict with the letter and spirit of these international instruments. Nor does he think that this right can be inferred from considerations of a general character based upon the sovereign rights of Lithuania, seeing that the Statute, on the one hand, has laid down the conditions for the exercise of these rights in the Memel Territory and, on the other hand, has fixed very clearly and precisely both the limits of the autonomy of the said Territory within the Republic of Lithuania and the limits of the latter's sovereignty in the autonomous Territory.

M. Römer's, Judge *ad hoc*, while concurring in clauses 1 to 5 (inclusive) of the operative part and in the grounds relating thereto, declares that he is unable to concur in the grounds and conclusions of the Court's judgment upon point 6 of the application, because, in his opinion, the Statute makes no distinction between a Directorate which has previously enjoyed the confidence of the Chamber and a regularly appointed Directorate which has not enjoyed such confidence. Accordingly, such a distinction being arbitrary, there is no ground for refusing any regularly constituted Directorate the right, under Article 12, paragraph 5, of the Statute, to agree to the dissolution of the Chamber for the purpose of appealing to the electorate.

(Initialled) J. G. G.

(Initialled) Å. H.